



INDIAN POLITY

- **AUTHORITATIVE TEXT OF THE CONSTITUTION IN HINDI**
- **PUBLIC SERVICES**

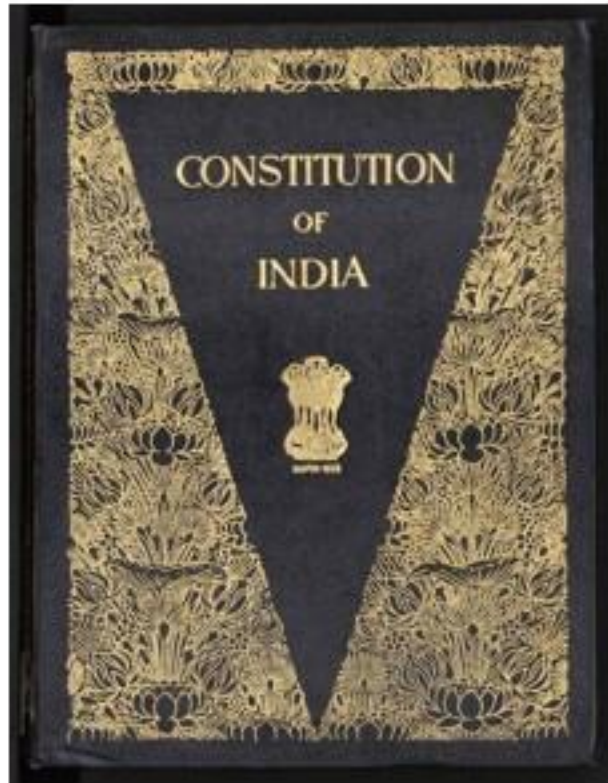
MODULE – 111



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AUTHORITATIVE TEXT OF THE CONSTITUTION IN HINDI LANGUAGE



- Originally, the Constitution of India did not make any provision with respect to an authoritative text of the Constitution in the Hindi language.
- Later, a provision in this regard was made by the 58th Constitutional Amendment Act of 1987.
- This amendment inserted a new Article 394-A in the last part of the Constitution i.e., Part XXII.

AUTHORITATIVE TEXT OF THE CONSTITUTION IN HINDI LANGUAGE

PROVISIONS OF ARTICLE 394-A



1

The President shall cause to be published under his authority :

- a) The **translation of the Constitution in Hindi language**. The modifications which are necessary to bring it in conformity with the language, style and terminology adopted in the authoritative texts of the Central Acts in Hindi can be made in it. All the amendments of the Constitution made before such publication should be incorporated in it.
- b) The **translation in Hindi of every amendment of the constitution** made in English.

AUTHORITATIVE TEXT OF THE CONSTITUTION IN HINDI LANGUAGE

PROVISIONS OF ARTICLE 394-A



2 The translation of the Constitution and its every amendment published shall be **construed to have the same meaning as the original text in English**. If any difficulty arises in this matter, the President shall cause the Hindi text to be revised suitably.

3 The translation of the Constitution and its every amendment published shall be deemed to be, for all purposes, its authoritative text in Hindi.

AUTHORITATIVE TEXT OF THE CONSTITUTION IN HINDI LANGUAGE

REASONS FOR THE 58TH AMENDMENT



- 1** The Constitution of India adopted by the Constituent Assembly on **November 26, 1949**, was in the English language.
- 2** A Hindi translation of the Constitution, signed by the members of the Constituent Assembly, was also published in 1950 under the authority of the President of the Constituent Assembly.
- 3** There **had been a general demand** for the publication of an authoritative text of the Constitution in Hindi incorporating in it all the subsequent amendments.

AUTHORITATIVE TEXT OF THE CONSTITUTION IN HINDI LANGUAGE

REASONS FOR THE 58TH AMENDMENT

भारत का राजपत्र
The Gazette of India



4 It has also been imperative to have an authoritative text of the Constitution in the Hindi language for facilitating its use in the legal process.

5 In pursuance of Article 394-A, the President published in the Gazette of India, an authoritative text of the Constitution of India in the Hindi language.

PUBLIC SERVICES

ALL-INDIA SERVICES

All-India services are those services which are common to both Central and state governments.

CENTRAL SERVICES

The personnel of Central services work under the exclusive jurisdiction of the Central government.

STATE SERVICES

The personnel of state services work under the exclusive jurisdiction of the state government.

I. ALL-INDIA SERVICES



1 The members of these services occupy top positions (or key posts) under both the Centre and the states and serve them by turns.

2 At present, there are three all-India services. They are:

- Indian Administrative Service (IAS)
- Indian Police Service (IPS)
- Indian Forest Service (IFS)

3 In 1963, a provision was made for the creation of three more all-India services. They were **Indian Forest Service**, **Indian Medical and Health Service** and **Indian Service of Engineers**.

I. ALL-INDIA SERVICES



4 However, out of these three, only the Indian Forest Service came into existence in 1966.

5 The **All-India Services Act of 1951** authorised the Central government to make rules in consultation with the state governments for the **regulation of recruitment and service conditions of the members of all-India services.**

6 The members of these services are recruited and trained by the Central government but are assigned to different states for work.

PUBLIC SERVICES

I. ALL-INDIA SERVICES



- 7** They belong to different state cadres; the Centre having no cadre of its own in this regard.
- 8** They serve the Central government on deputation and after completing their fixed tenure they go back to their respective states.
- 9** The all-India services are controlled jointly by the Central and state governments.
- 10** The ultimate control lies with the Central government while the immediate control is vested in the state governments.

I. ALL-INDIA SERVICES



SARDAR VALLABHBHAI PATEL
INDIAN POLITICIAN

11 Any **disciplinary action** (imposition of penalties) against these officers can only be taken by the **Central government**.

12 Sardar Vallabhbhai Patel was the chief protagonist of all-India services in the Constituent Assembly. Hence, he came to be regarded as the 'Father of all-India Services'.

II. CENTRAL SERVICES



- 1 They hold specialised (functional and technical) positions in various departments of the Central government.
- 2 Before Independence, the Central services were classified into **class-I, class-II, subordinate and inferior services**.
- 3 After Independence, the nomenclature of subordinate and inferior services was replaced by **class-III and class-IV services**.

II. CENTRAL SERVICES



- 4 Again in 1974, the classification of Central services into class-I, class-II, class-III and class-IV was changed to **group A**, **group B**, **group C** and **group D**, respectively.

- 5 Group A and group B comprises of **gazetted officers** while group C and group D are **non-gazetted**.

- 6 Among all, the **Indian Foreign Service (IFS)** is the **highest central service** in terms of prestige, status, pay and emoluments.

- 7 In fact, it (though a central service) competes with the all-India services in position, status and pay scales.

PUBLIC SERVICES

III. STATE SERVICES



- 1 They hold different positions (general, functional and technical) in the departments of the state government.
- 2 However, they occupy lower positions (in the administrative hierarchy of the state) than those held by the members of the all-India services.
- 3 The number of services in a state differ from state to state.
- 4 Each of these services is named after the state.

III. STATE SERVICES

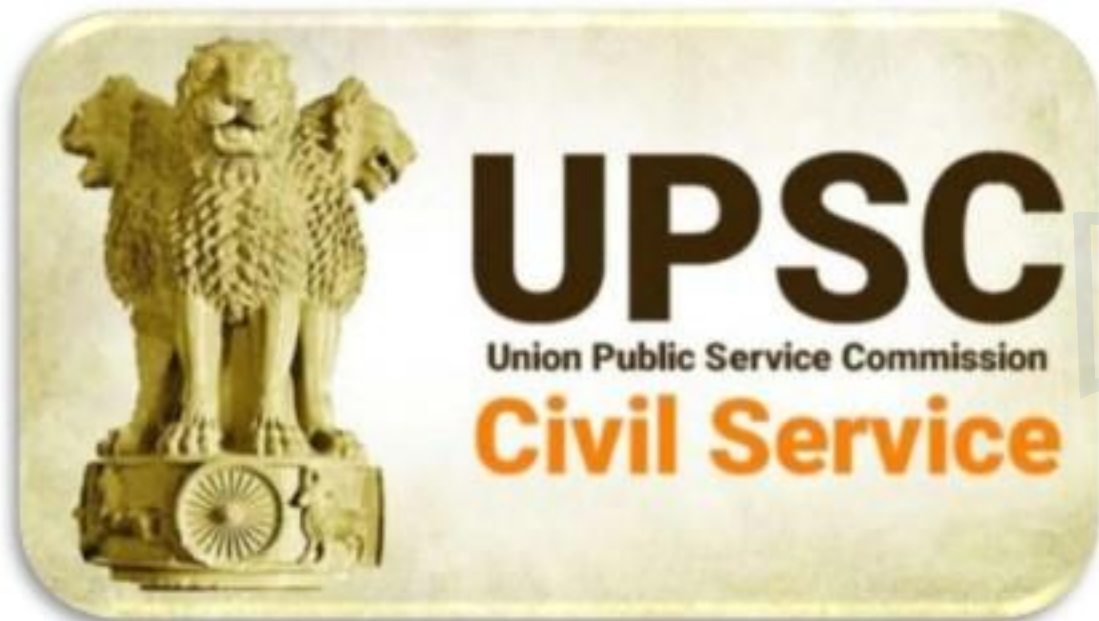


5 The state services are also classified into **gazetted class and non-gazetted class**. Usually, Class I (Group-A) and Class-II (Group-B) Services are gazetted classes while Class-III (Group-C) and Class-IV (Group-D) services are non-gazetted classes.

6 The names of the members of gazetted class are **published in the Government Gazette** for appointment, transfer, promotion and retirement, while those of the non-gazetted are not published.

7 Also, the members of the gazetted class are called '**officers**' while those of non-gazetted are called '**employees**'.

III. STATE SERVICES



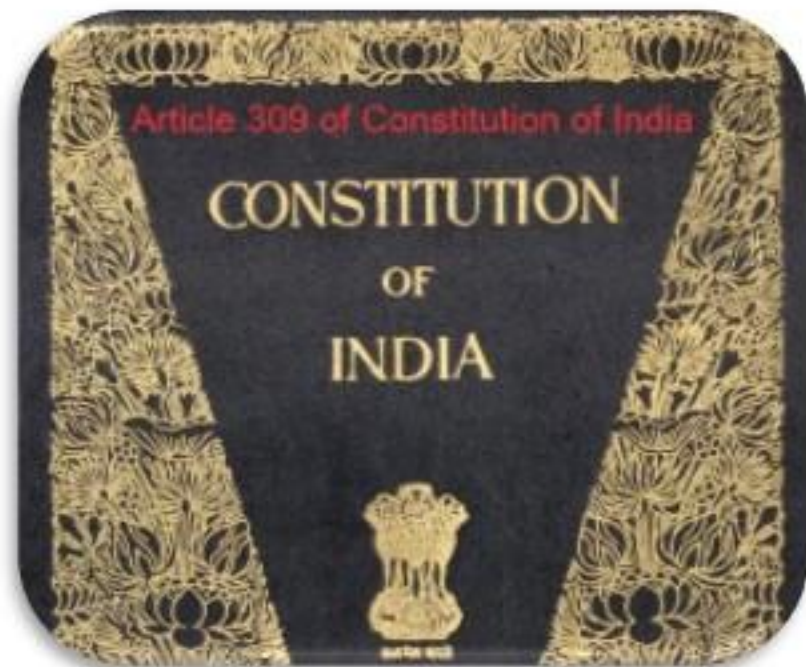
8 The All-India Services Act of 1951 specifies that senior posts not exceeding thirty-three and one third per cent in the Indian Administrative Service (IAS), Indian Police Service (IPS) and Indian Forest Service (IFS) **are required to be filled in by promotion of officers employed in the state services.**

9 Such promotions are made on the recommendation of selection committee constituted for this purpose in each state. Such a committee is presided over by the **Chairman or a member of UPSC.**

CONSTITUTIONAL PROVISIONS

Articles 308 to 314 in part XIV of the Constitution contain provisions with regard to all-India services, Central services and state services.

I. RECRUITMENT AND SERVICE CONDITIONS



- 1 Article 309 empowers the Parliament and the state legislatures to regulate the recruitment and the conditions of service of the persons appointed to public services and posts under the Centre and the states, respectively.
- 3 Until such laws are made, the president or the governor can make rules to regulate these matters.

PUBLIC SERVICES

CONSTITUTIONAL PROVISIONS

I. RECRUITMENT AND SERVICE CONDITIONS



— PARLIAMENT OF INDIA —

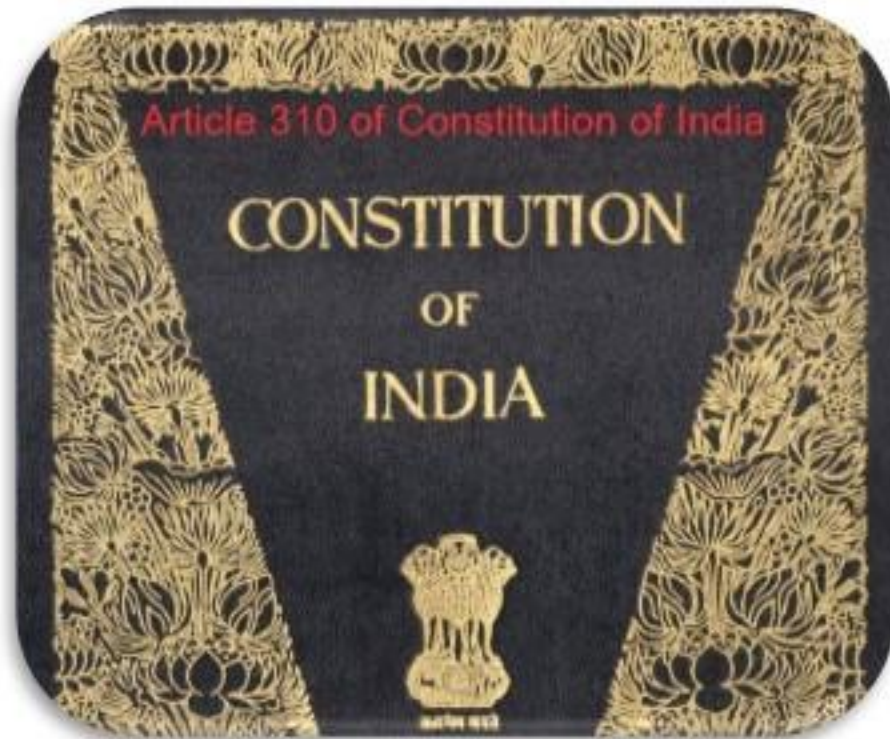
3 Under this provision, the Parliament or the state legislature can **impose 'reasonable' restrictions on the Fundamental Rights** of public servants in the interests of integrity, honesty, efficiency, discipline, impartiality, secrecy, neutrality, anonymity, devotion to duty and so on.

4 Such restrictions are mentioned in the conduct rules like Central Services (Conduct) Rules, Railway Services (Conduct) Rules and so on.

PUBLIC SERVICES

CONSTITUTIONAL PROVISIONS

II. TENURE OF OFFICE



1

According to Article 310, members of the defence services, the civil services of the Centre and the all-India services or persons holding military posts or civil posts under the Centre, hold office during the **pleasure of the president**.

2

Similarly, members of the civil services of a state or persons holding civil posts under a state, hold office during the **pleasure of the governor** of the state.

PUBLIC SERVICES

CONSTITUTIONAL PROVISIONS

II. TENURE OF OFFICE



3 However, there is an exception to this general rule of dismissal at pleasure.

4 The president or the governor may provide for the payment of compensation to him in two cases:

- i. if the **post is abolished** before the expiration of the contractual period, or
- ii. if he is **required to vacate that post for reasons not connected with misconduct** on his part.

PUBLIC SERVICES

CONSTITUTIONAL PROVISIONS

III. SAFEGUARDS TO CIVIL SERVANTS

Article 311 places two restrictions on the above 'doctrine of pleasure'.

TWO SAFEGUARDS	2 ND SAFEGUARD NOT APPLICABLE IN THE FOLLOWING THREE CASES
▪ A civil servant cannot be dismissed or removed by an authority subordinate to that by which he was appointed. ▪ A civil servant cannot be dismissed or removed or reduced in rank except after an inquiry in which he has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges.	▪ Where a civil servant is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge; or ▪ Where the authority empowered to dismiss or remove a civil servant or to reduce him in rank is satisfied that for some reason (to be recorded in writing), it is not reasonably practicable to hold such inquiry; or ▪ Where the president or the governor is satisfied that in the interest of the security of the state, it is not expedient to hold such inquiry.

PUBLIC SERVICES

CONSTITUTIONAL PROVISIONS

III. SAFEGUARDS TO CIVIL SERVANTS

1 Originally, the opportunity of being heard was given to a civil servant at two stages—at the inquiry stage, and at the punishment stage.

2 But, the 42nd Amendment Act of 1976 abolished the provision for second opportunity (that is, the right of a civil servant to make representation against the punishment proposed as a result of the findings of the inquiry).

3 Hence, the present position is that where it is proposed (after inquiry) to impose upon a civil servant the punishment of dismissal, removal or reduction in rank, it may be imposed on the basis of the evidence adduced at the inquiry without giving him any opportunity of making representation on the penalty proposed.

PUBLIC SERVICES

CONSTITUTIONAL PROVISIONS

IV. ALL-INDIA SERVICES

Article 312 makes the following provisions in respect of all-India services:



1

- The Parliament can create new all-India services (including an all-India judicial service), if the Rajya Sabha passes a resolution declaring that it is necessary or expedient in the national interest to do so.
- Such a resolution in the Rajya Sabha should be supported by **two-thirds of the members present and voting**.
- This power of recommendation is given to the Rajya Sabha to protect the interests of states in the Indian federal system.

CONSTITUTIONAL PROVISIONS

IV. ALL-INDIA SERVICES



- 2** Parliament can regulate the recruitment and conditions of service of persons appointed to all-India services.

Accordingly, the Parliament has enacted the All-India Services Act, 1951 for the purpose.



- 3** The services known at the commencement of the Constitution (that is, January 26, 1950) as the Indian Administrative Service and the Indian Police Service are deemed to be services created by Parliament under this provision.

- 4** The all-India judicial service should not include any post inferior to that of a district judge. A law providing for the creation of this service is not to be deemed as an amendment of the Constitution for the purposes of Article 368.

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